

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER**

In the Matter of the Application of

STEPHEN GRANT RUSSELL,
Petitioner,

For a Judgment Pursuant to Article 78
of the Civil Practice Law and Rules,

— against — Index No.: _____

HON. MICHELLE I. SCHAUER, Judge of the Family Court, Westchester County;
MICHELE REED BOWMAN, Support Magistrate, Westchester County Family Court;
WESTCHESTER COUNTY FAMILY COURT; and
TARA KATELYN WALSH,

Respondents.

VERIFIED PETITION PURSUANT TO CPLR ARTICLE 78

Filed Pursuant to CPLR §§ 7801–7806, 7803(2), 7803(3);
U.S. Const. Amendments I & XIV; 42 U.S.C. § 1983

TABLE OF AUTHORITIES

Cases

Case	Citation	Issue
<i>Coleman v. Coleman</i>	61 A.D.2d 757 (1st Dep't 1978)	Reversal for improper ex parte communications
<i>D&L Holdings, LLC v. RCG Goldman Co.</i>	287 A.D.2d 65 (1st Dep't 2001)	Judicial estoppel — contradictory positions across proceedings
<i>Glassman v. ProHealth Ambulatory Surgery Ctr.</i>	96 A.D.3d 799 (2d Dep't 2012)	Jurisdictional excess — expanding scope beyond appellate remand
<i>Matter of Abigail Y. v. Jerry Z.</i>	200 A.D.3d 1512 (3d Dep't 2021)	Pro se filings — liberal construction required
<i>Matter of Amos-Richburg v. Richburg</i>	94 A.D.3d 1112 (2d Dep't 2012)	Support magistrate exceeded authority — sua sponte modification
<i>Matter of Bast v. Rossoff</i>	92 N.Y.2d 723 (1998)	CSSA methodology mandatory — magistrates cannot deviate
<i>Matter of Brescia v. Fitts</i>	56 N.Y.2d 132 (1982)	Changed circumstances standard — modification mandatory
<i>Matter of Esposito v. Esposito</i>	175 A.D.3d 693 (2d Dep't 2019)	DRL § 240 mandatory DV consideration
<i>Matter of Hezi v. Hezi</i>	130 A.D.3d 1031 (2d Dep't 2016)	Asymmetric treatment — crediting unverified financial claims
<i>Matter of Holtzman v. Goldman</i>	71 N.Y.2d 564 (1988)	Prohibition — "without or in excess of jurisdiction" standard
<i>Matter of Merritt v. Merritt</i>	160 A.D.3d 870 (2d Dep't 2018)	Failure to recognize substantial change in circumstances
<i>Matter of Pell v. Board of Education</i>	34 N.Y.2d 222 (1974)	Arbitrary and capricious — must have rational basis in fact

<i>Matter of Pirro v. Angiolillo</i>	89 N.Y.2d 351 (1996)	Prohibition granted — judge exceeded statutory authority
<i>Matter of Rush v. Mordue</i>	68 N.Y.2d 348 (1986)	Prohibition — "clear legal right" threshold
<i>Matter of Walsh v. Russell</i>	214 A.D.3d 890 (2d Dep't 2023)	Binding appellate determination — order not on default
<i>Matter of Wissink v. Wissink</i>	301 A.D.2d 36 (2d Dep't 2002)	DRL § 240 failure to consider DV = reversible error
<i>Nieves v. Bartlett</i>	587 U.S. 391 (2019)	First Amendment retaliation framework
<i>People v. Evans</i>	94 N.Y.2d 499 (2000)	Law of the case — appellate mandate binds successor judge

Statutes and Rules

Authority	Description
CPLR §§ 7801–7806	Article 78 — Proceeding Against Body or Officer
CPLR § 7803(2)	Prohibition — excess of jurisdiction
CPLR § 7803(3)	Certiorari — arbitrary and capricious
CPLR § 217(1)	Four-month statute of limitations
CPLR § 308	Personal service upon natural person
CPLR § 506(b)	Venue — proceedings against body or officer
CPLR § 2106	Affirmation of truth of statement
CPLR § 5015(a)(3), (a)(4)	Vacatur grounds — fraud, lack of jurisdiction
CPLR § 5511	Standing to appeal
DRL § 240(1)(a)	Mandatory domestic violence inquiry in custody
DRL § 240(1-b)(b)(5)(iv)	Imputation of income — Child Support Standards Act
FCA § 439(e)	Objections to support magistrate orders
FCA § 451(3)	Support modification — 15% income change threshold

FCA § 455	Matters excluded from magistrate authority
NY Executive Law § 108	Address Confidentiality Program
NY Penal Law §§ 175.20, 175.25	Tampering with public records
22 NYCRR § 100.3(B)(6)	Prohibition on ex parte communications
22 NYCRR § 100.3(E)(1)	Judicial disqualification — impartiality
U.S. Const. Amend. I	Freedom of speech — whistleblower protection
U.S. Const. Amend. XIV	Due process and equal protection
42 U.S.C. § 1983	Civil rights under color of state law

NATURE OF PROCEEDING

This is a combined proceeding under CPLR Article 78 seeking:

(a) Prohibition (CPLR § 7803(2)) against Respondent Schauer, who has proceeded and is proceeding without and in excess of jurisdiction by: converting a ministerial compliance motion into a contested custody hearing through unauthorized procedural modifications; imposing service conditions that are legally and practically impossible; refusing to respond to clarification requests; failing for three years to reconcile the court's irreconcilable procedural record with the Appellate Division's published finding; authorizing or permitting the unauthorized reclassification of judicial records; conducting ex parte communications regarding the case; and failing to conduct the mandatory domestic violence inquiry under DRL § 240(1)(a) despite knowledge of a California jury verdict finding the custodial parent liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress with findings of Malice, Oppression, or Fraud; and

(b) Certiorari (CPLR § 7803(3)) to review and annul determinations of Respondent Bowman, issued on February 3, 2026 and March 12, 2026, that are arbitrary and capricious, contrary to the record, affected by errors of law, made in excess of jurisdiction, and made in violation of lawful procedure.

Both proceedings arise from the same predicate: a custody order whose procedural characterization is irreconcilably contradicted by the court's own signed instrument, the parties' own representations, the Appellate Division's published finding, and a retroactive CMS reclassification that no judicial order authorized — and which two judicial officers, informed of the contradiction, have declined to correct.

PARTIES

1. Petitioner STEPHEN GRANT RUSSELL is a resident of Santa Barbara, California, and is the Respondent in the underlying Family Court custody and support proceedings, File No. 154703, Docket Nos. V-07641-18 and F-08146-18/25F.
2. Respondent HON. MICHELLE I. SCHAUER is a Judge of the Family Court, Westchester County, who has presided over the custody proceeding since May 2021 and whose acts are challenged herein as in excess of jurisdiction.
3. Respondent MICHELE REED BOWMAN is a Support Magistrate of the Westchester County Family Court who issued the challenged support determinations on February 3, 2026 and March 12, 2026.
4. Respondent WESTCHESTER COUNTY FAMILY COURT is the court in which the challenged proceedings occurred.
5. Respondent TARA KATELYN WALSH is the Petitioner in the underlying custody and support proceedings and has a direct interest in their outcome. A California jury unanimously found Walsh liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress, with findings of Malice, Oppression, or Fraud (ExG_01). The judgment of \$332,080.74 was affirmed on appeal and domesticated in New York (Index No. 55523/2023).

JURISDICTION AND VENUE

6. This Court has jurisdiction pursuant to CPLR § 7804(b). Venue is proper in Westchester County pursuant to CPLR § 506(b) because the Respondent body and officers are located in Westchester County.
7. This proceeding is timely. Respondent Schauer's challenged acts include modifications to an Order to Show Cause dated March 10, 2026. Respondent Bowman's challenged orders were mailed on March 19, 2026. This petition is filed within the four-month statute of limitations under CPLR § 217(1).

STATEMENT OF FACTS

A. How the Child Was Taken from California

8. On June 4, 2018, Petitioner filed a Parentage Petition in the Superior Court of California (FPT-18-377425). Automatic Temporary Restraining Orders prohibited removal of the parties' minor child, Evelyn Grace Walsh (DOB: January 27, 2018), from California.
9. Respondent Walsh made three attempts to remove the child. First, she abandoned the child and left California alone. Second, she attempted to take the child and was stopped by a California court order. Third — after two failures — she and her family coordinated a deceptive plan. Her father emailed Petitioner: "Works for us — I appreciate your flexibility Steve" (ExA_01). Walsh provided a round-trip ticket showing return within eleven days. On June 9, 2018, she departed with the child. She never returned. Her father later testified under oath that he was "less than 100

percent genuine" (ExQQ_01c). At trial, Walsh admitted: "I lied . . . I had no intention to come back to California" (ExTR_19e).

10. Two days before filing in New York, California law enforcement issued an Emergency Protective Order identifying Walsh — not Russell — as the restrained party, and Russell as the protected person (ExEPO_01). The EPO application stated: "Over the course of a year and a half, Russell was being poisoned by Walsh via Seroquel in his drinks."

11. On July 12, 2018 — thirty-three days after the child's arrival in New York — Walsh filed custody and family offense petitions in Westchester County Family Court invoking emergency jurisdiction under DRL § 76-a, based on an allegation that Russell had threatened to kill her and the child with a gun (ExOO_41).

12. The gun allegation was fabricated. Before filing, Walsh wrote to a friend: "I seriously dont think Steve ever had a gun it was all in my head I made up the whole thing even the locks none of it is real" (ExSS_07, May 17, 2018). On November 23, 2020, Walsh submitted a signed letter to the Chappaqua Police Department: "Mr. Stephen Russell never made a threat to kill myself or our daughter Evelyn . . . statements to the contrary were not true" (ExM_01).

B. What a Jury Found

13. On February 22, 2022, a San Francisco jury unanimously found Walsh liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress, with findings of Malice, Oppression, or Fraud (ExG_01). The jury evaluated:

(a) Walsh's sworn admission: "On at least two occasions you gave Mr. Russell the drug Seroquel, correct?" "Yes." "Was he aware?" "No, he was not." (ExTR_19a.)

(b) Walsh's text to her psychiatrist: "I put Seroquel in his wine" (ExPP_04).

(c) Independent LabCorp toxicology detecting Lithium in Russell's system at approximately six times the upper reference limit (ExI_02).

(d) Eyewitness testimony from the parties' nanny, who witnessed Walsh placing substances in Russell's drinks (ExOO_49).

(e) Walsh's internet search: "How Much Is a Lethal Dose of Seroquel?" (ExOO_45.)

(f) Walsh's own sister acknowledged: "it did happen without his consent" (ExW_01).

14. The jury found the entire pattern was executed with Malice, Oppression, or Fraud. The judgment of \$332,080.74 was affirmed on appeal (ExG_05) and domesticated in New York (Index No. 55523/2023, Westchester County).

C. Five Judges, Three Recusals, No Resolution

15. Before Respondent Schauer took the bench, three judges presided over this matter:

(a) **Judge Gordon-Oliver** accepted emergency jurisdiction based on the fabricated gun allegation, conducted a UCCJEA communication with a California judge that was never

recorded in violation of DRL § 75-g (ExTR_08), entered an order conditioning Russell's access to his child on the surrender of his criminal rights against his adjudicated abuser (ExL_01), and failed to act when Walsh defaulted on a protective order proceeding. She recused.

(b) Judge Horowitz entered the initial default finding — the same default the Appellate Division later held could not have occurred. He recused.

(c) Judge Humphrey was assigned the motion to vacate. Walsh and her counsel failed to appear for two scheduled hearings. Rather than grant the motion on their default, Judge Humphrey recused (ExTR_05a).

16. Respondent Schauer inherited all of it — and refused to address any of it.

D. Schauer's Conduct — Refusing to Address Predecessor Failures

17. At the August 27, 2021 hearing, Petitioner raised the institutional misconduct directly on the record, stating: "Whistleblower status in this case is cooperating with the county, state, and federal authorities. It includes testimony that began with Gordon-Oliver's appointment of two individuals. Probably the — the core of the investigation is around Raymond Griffin, who has turned out to be a fake doctor, who harmed a lot of people over 30 years. He has fled the state. He has been delicensed." (ExTR_01.)

17A. Respondent Schauer's response was dismissive. She acknowledged Griffin's status — "I'm aware of Dr. Griffin. He's no longer on the list. We can no longer assign him" — but treated the systemic corruption as irrelevant: "I don't understand how this relates to this litigation." (ExTR_01.) Griffin's sole credential (CASAC) had been surrendered to OASAS in August 2019 for gross negligence, inaccurate documentation, falsified documentation, and exploitation of patients across multiple families (ExS_03). Despite this acknowledgment, Schauer never struck Griffin's evaluation from the record. Compliance with Griffin's recommendations remained a gating condition for Russell's unsupervised visitation (ExSS_08). The evaluation itself was shielded by a protective order preventing Russell from even reading it. Schauer inherited three recusals, a discredited evaluator, Walsh's pattern of defaults, fabricated allegations, and an adjudicated poisoner as the custodial parent — and declined to examine any of it.

D-1. The November 5, 2021 Gag Order — Engineered Default at a Scheduled Conference

17B. While Russell's default-related and protective order applications against Walsh remained unresolved, Respondent Schauer permitted the Attorney for the Child, Donna M. Genovese, to initiate a separate Order to Show Cause on October 14, 2021, seeking to restrain Russell from "posting, uploading blogs and displaying the likeness" of the child and to require that "existing postings, blogs and likenesses be erased, deactivated and deleted" (ExGagOrder). The OSC was filed in direct response to Petitioner's documentary blog, ChappaquaPoison.com, which documented the court's institutional failures — including the Griffin fraud, the fabricated gun allegation, and the jurisdictional defects.

17C. Walsh had defaulted twice on Petitioner's applications before Judge Humphrey. Petitioner's counsel documented this contemporaneously: "My application against Ms. Walsh was heard twice already by Judge Humphrey. Ms. Walsh defaulted twice. The matter awaits ruling and has been 'prosecuted.'" (ExOO_06, July 29, 2021.) Rather than rule on Walsh's defaults, Humphrey recused. Rather than address the unresolved Walsh defaults she inherited, Schauer permitted Genovese's OSC to proceed — redirecting the court's attention from Walsh's non-compliance to Russell's speech.

17D. On November 5, 2021, the OSC was heard. Russell, who was outside the United States, did not appear. His counsel, Max DiFabio, Esq., was present on behalf of Russell's mother, Linda Russell. Petitioner Walsh, her counsel Christopher Weddle, AFC Genovese, and Linda Russell's counsel all appeared. Schauer entered an Order on Default against Russell — the speech restriction — and a companion Order on Consent against Linda Russell, Russell's mother, imposing identical restrictions on a non-party grandmother whose own counsel was in the courtroom (ExR_02).

17E. The asymmetry is the point. Walsh defaulted twice on Russell's applications — no consequence. Russell's counsel was present but Russell himself was not — permanent speech restriction, extended to his mother. The proceeding that should have addressed Walsh's defaults was instead used to silence the party documenting the court's failures. The Appellate Division later modified the speech restriction by narrowing the blanket deletion provision, and otherwise affirmed the order insofar as appealed from (ExR_04). But the default on Russell's own applications against Walsh was never addressed. Schauer granted Walsh relief on Russell's absence while denying Russell relief on Walsh's absences.

D-2. The January 5, 2022 Inquest

18. On January 5, 2022, Respondent Schauer conducted an inquest proceeding. Russell was outside the United States. His retained counsel appeared in person and requested electronic participation: "my client is available by telephone or electronically; is there any way to —" Schauer responded: "No." (Inquest Tr. 15–16.) Schauer denied electronic appearance during documented COVID-era global flight cancellations, providing no protective measures for the party that a California EPO had identified as a domestic violence victim — and demanding in-person appearance of the protected party while offering no protection.

19. Before any witness was sworn, Schauer stated: "He's not been the most credible person." (Inquest Tr. 4.) She further stated: "alternatively, if he were here, I could throw him in jail and let him sit in a jail cell." (Inquest Tr. 12.)

20. Walsh was the sole witness. No documentary exhibits were admitted (Inquest Tr. 2). The proceeding was conducted in a default/inquest posture: "On Mr. Russell's default on inquest, this Court finds . . ." (Inquest Tr. 94.) Schauer directed counsel not to provide Russell with a copy of the transcript (Inquest Tr. 95–96). The Appellate Division later modified the speech restriction by narrowing it, while affirming the order insofar as appealed from.

21. On February 2, 2022, Schauer entered an Order of Custody granting Walsh full legal and physical custody, a five-year Order of Protection against Russell, and a speech restriction order. The speech restriction was initiated by the Attorney for the Child, Donna M. Genovese, Esq., via an Order to Show Cause that extended to "any persons, agents, or entities acting on [Russell's] behalf" — language designed to reach independent journalists covering the case (ExGagOrder).

E. The Appellate Division's Ruling

22. On March 22, 2023, the Appellate Division, Second Department, held: "Initially, contrary to the contention of the mother and the attorney for the child, the order appealed from was not entered upon the father's default, inasmuch as his attorney appeared on his behalf at the January 5, 2022, hearing." *Matter of Walsh v. Russell*, 214 A.D.3d 890, 891 (2d Dep't 2023) (ExR_04).

(a) The Court did not vacate the February 2, 2022 order in full. Rather, it modified the order by deleting the blanket directive requiring the father to erase, deactivate, and delete "any existing blogs and likenesses," substituted a narrower directive limited to existing blogs referencing the proceedings or disparaging the child's relatives, and likenesses of the child posted in connection with such blogs, and, as so modified, affirmed the order insofar as appealed from.

(b) The published decision is nevertheless material in two respects. First, it rejects the position advanced by both Walsh and the Attorney for the Child that the February 2, 2022 order was entered on default and therefore unappealable under CPLR § 5511. Second, it establishes that any later characterization of the February 2, 2022 order must reckon with the fact that counsel appeared and participated at the January 5, 2022 hearing.

(c) The operative procedural history is therefore mixed, not unitary: the December 3, 2021 ORDER ON DEFAULT arose from the November 5, 2021 return date of the Attorney for the Child's Order to Show Cause; the February 2, 2022 order followed the January 5, 2022 inquest at which Petitioner's counsel appeared and participated; and the Appellate Division later modified the latter order while rejecting the mother's and the Attorney for the Child's contention that it was entered upon default.

23. Critically, both adversaries had argued "on default" before the Appellate Division. Walsh's appellate counsel, Christopher Weddle, Esq., argued the appeal should be dismissed under CPLR § 5511 because "the trial court's order was issued on default" (ExWeddle). The Attorney for the Child characterized the order as "granted upon Appellant's default" (ExGenovese). The Appellate Division rejected both positions and reached the merits. Walsh is judicially estopped from claiming a valid hearing occurred — her own appellate counsel argued that no hearing occurred.

24. Christopher Weddle, Esq. — the same attorney who represented Walsh before the Appellate Division and argued that the custody order was entered on Russell's default — has since been appointed as a Support Magistrate at the Westchester County Family Court. Walsh's own appellate counsel now sits as a judicial officer in the same courthouse that is enforcing orders against Russell. This appointment compounds the structural conflict: the court that declines to

correct its records now includes, among its judicial officers, the attorney who argued most aggressively that those records reflected a default.

F. The Irreconcilable Procedural Record — March 2023 to February 2026

25. The Appellate Division's "not on default" finding, combined with the court's own records, produces a four-way characterization contradiction that has never been resolved:

- (a) The signed instrument — the December 3, 2021 order — is titled "ORDER ON DEFAULT" on its face.
- (b) Walsh's appellate counsel argued "on default" (ExWeddle). The Attorney for the Child argued "on default" (ExGenovese).
- (c) The Appellate Division held "not on default" because counsel appeared at the January 5, 2022 hearing.
- (d) The court management system now classifies the proceeding as "after hearing" — a characterization no party has ever advanced and no judicial order has authorized.

No two of these characterizations are consistent. Respondent Schauer took no action to reconcile the Appellate Division's finding with the procedural record for nearly three years — from March 22, 2023 until forced by Petitioner's Motion to Vacate filed February 14, 2026. Continued enforcement of custody and protection orders whose procedural basis the court itself cannot coherently describe is an act in excess of jurisdiction.

26. During those three years, Walsh's adjudicated domestic violence remained unconsidered. The San Francisco jury verdict — finding the custodial parent liable for Intentional Battery, Domestic Violence, and Intentional Infliction of Emotional Distress, with findings of Malice, Oppression, or Fraud — was returned on February 22, 2022, affirmed on appeal on September 15, 2023 (ExG_05), and domesticated in Westchester County (Index No. 55523/2023). Respondent Schauer was informed of the verdict. No DRL § 240(1)(a) domestic violence inquiry was ever conducted. A jury in a court of competent jurisdiction found that the custodial parent had poisoned the non-custodial parent — and the court that held custody jurisdiction did nothing with that finding. The mandatory inquiry was never conducted because the irreconcilable procedural record was never resolved, and no new proceeding was initiated that would have triggered the inquiry. The verdict was not disputed, not distinguished, and not examined. It was ignored.

G. The Unauthorized Record Reclassification

27. The court's own signed instrument — the Order dated December 3, 2021 — is titled "ORDER ON DEFAULT." Respondent Schauer stated three times on the January 5, 2022 record that the order was entered "on default" (Inquest Tr. 88, 92, 94).

28. The court management system (CMS) now classifies the same proceeding as "after hearing." No amending judicial order has been served on any party authorizing this reclassification. The reclassification contradicts both the signed instrument and the Appellate Division's finding that

the order was "not entered upon the father's default." This reclassification occurred under Respondent Schauer's authority as the presiding judge in File No. 154703 and constitutes an alteration of judicial records without judicial authorization — an act that exceeds the court's jurisdiction (ExSS_03).

H. Ex Parte Coordination — The Schauer-D'Ambrosio-Genovese Channel

29. In late December 2025, Petitioner filed a pro se modification petition in the custody case. Within approximately ten days, Respondent Schauer sent the petition to Donna M. Genovese, Esq. — the former Attorney for the Child who had initiated the unconstitutional speech restriction — through the court portal, without notice to Petitioner. The communication was routed through Court Attorney Michele D'Ambrosio, Esq. (mdambros@nycourts.gov).

30. On January 9, 2026, Genovese responded directly to Respondent Schauer via D'Ambrosio, declining reappointment because she was joining the Unified Court System at Bronx Supreme Court. No copy was served on Petitioner.

31. This exchange establishes that upon receiving Petitioner's new filing, Respondent Schauer's first act was to reach for the attorney who had initiated the unconstitutional speech restriction — through an ex parte channel that bypassed the adversarial process. Petitioner was not notified of the communication through official channels and only learned of it through independent investigation. This pattern of ex parte coordination through court personnel is itself an act in excess of jurisdiction.

I. Three Recusals, a Whistleblower, and the Structural Conflict

31A. Three Westchester Family Court judges — Gordon-Oliver, Horowitz, and Humphrey — recused themselves from this matter before Respondent Schauer took the bench. Three judicial officers, each confronted with some portion of the underlying facts, determined that they could not or should not continue. The frequency of recusal is itself evidence that the proceeding presents conflicts that the court has recognized but not resolved. Respondent Schauer inherited those same conflicts and has not recused.

31B. Petitioner is a whistleblower against the Westchester County court system. On August 7, 2021, Petitioner sent a PGP-encrypted email with the subject line "Whistleblower" to court administrator Eric P. Eckel at the New York State Courts (nycourts.gov), documenting judicial misconduct, the discredited forensic evaluator, and the procedural irregularities in the custody proceeding. No institutional response was ever received. Approximately ninety days later, the January 5, 2022 inquest was conducted — the same proceeding that produced the default orders, the speech restriction, and the five-year order of protection. The court's response to Petitioner's whistleblower communication was not corrective action but accelerated adverse proceedings.

31B-1. In February 2026, Petitioner submitted a comprehensive whistleblower complaint to seven federal and state agencies, including the SDNY Civil Rights Unit, the FBI Public Corruption Squad, the New York Attorney General's Public Integrity Bureau, the Commission

on Judicial Conduct, the Attorney Grievance Committee (9th Judicial District), the New York Office of the Professions (NYSED), and the New York Inspector General. The complaint documented the institutional misconduct described herein and requested formal investigation, preservation of records, and inter-agency coordination. Petitioner has also filed complaints with the Westchester County District Attorney, the OCA Inspector General, and multiple state legislators whose districts encompass Westchester County.

31C. Petitioner operates ChappaquaPoison.com, a documentary blog built on authenticated evidence documenting the conduct of Westchester Family Court. The speech restriction order initiated by AFC Genovese — later modified by the Appellate Division by narrowing the blanket deletion provision — was directed specifically at this documentary work, extending to "any persons, agents, or entities acting on [Russell's] behalf." Petitioner's status as a public critic of the Westchester court system is relevant to the pattern of adverse judicial conduct described herein.

31D. The structural conflict extends further. As described in ¶ 24A, Walsh's appellate counsel Christopher Weddle has been appointed as a Support Magistrate at Westchester Family Court — a judicial officer in the same courthouse that is enforcing orders against Petitioner. The Attorney for the Child, Donna Genovese — who initiated the unconstitutional speech restriction — has joined the Unified Court System as a Court Attorney Referee at Bronx Supreme Court. The court personnel who acted most aggressively against Petitioner have been absorbed into the judicial system, while Petitioner remains subject to orders whose procedural basis is irreconcilably contradicted by the court's own records, the parties' own representations, and the Appellate Division's published finding.

31E. Over the course of this litigation, Petitioner has been represented by at least six law firms, all of which withdrew under circumstances suggesting external pressure. Walsh's father, Stephen Walsh Sr., left a recorded voicemail threatening Petitioner's attorney with license revocation. Walsh Sr. evaded service of a deposition subpoena on three separate occasions. No attorney has been able to sustain representation of Petitioner in this proceeding. Petitioner now proceeds pro se — not by choice, but because the structural conditions of this litigation have made retained counsel unsustainable.

I-2. Schauer's Response to the Motion to Vacate — The OSC Modifications

32. On or about February 14, 2026, Petitioner filed a Motion to Vacate All Prior Orders (NYSCEF V-07641-18, Doc. #138, Motion #12). The motion sought relief under CPLR §§ 5015(a)(3) and (a)(4), arguing that the predicate custody orders were procured through fraud and entered without jurisdiction — grounds independent of the Appellate Division's modification and affirmance.

33. On March 10, 2026, Respondent Schauer signed the Order to Show Cause with handwritten modifications that fundamentally altered its character:

(a) Striking the printed service method ("by first-class mail and electronic mail"); (b) Substituting handwritten "personal" service; (c) Imposing a 10-day deadline (March 20, 2026); and (d) Setting a hearing date (April 16, 2026).

(OSC_Court_Response_Signed_2026-03-10.pdf, page 3.)

34. These modifications converted a ministerial compliance motion — asking the court to implement what the Appellate Division had already directed — into a contested custody hearing, complete with appointment of new counsel for Walsh and the child.

J. The Impossible Service Requirement

35. The handwritten "personal" service requirement was imposed on a party whose opposing party is enrolled in the Address Confidentiality Program. Walsh's address is confidential by operation of law. Prior personal service attempts at the Walsh compound were "refused and characterized as harassment."

36. During the February 3, 2026 support proceeding before Respondent Bowman, Walsh herself requested that all service be by mail, and the court accepted that method — five weeks before Respondent Schauer imposed a personal service requirement on the same party in the custody matter.

K. The Refusal to Clarify

37. On March 10, 2026, Petitioner sent a Service Clarification Letter to the court asking three specific questions: (1) whether the handwritten change was directed by the court or introduced during processing; (2) whether ACP service was sufficient; and (3) whether an alternative method could be used given ACP enrollment (Service_Clarification_Letter_2026-03-10.pdf).

38. The court's complete silence left the service conditions ambiguous and unresolvable. A court that imposes a condition has an obligation to clarify that condition when a pro se party raises a reasonable question about compliance. Petitioner was forced to withdraw the Motion to Vacate without prejudice on March 23, 2026 because the conditions imposed by Respondent Schauer made the proceeding impossible to prosecute.

L. The Bowman Support Hearing — February 3, 2026

39. On February 3, 2026, Respondent Bowman conducted a hearing on Petitioner's modification petition seeking reduction of child support from \$4,788.00 per month. Petitioner's income had declined from approximately \$350,000+ (at the time of the original order in 2018) to \$115,184 (2025 W-2 income) — a reduction of more than 67%, exceeding the 15% statutory threshold under FCA § 451(3)(b) by a factor of more than four.

40. At the hearing, Respondent Bowman stated: "I reviewed the court file and it seems to indicate that custody was granted after hearing" (ExTR_20). Bowman adopted the altered CMS classification — the same reclassification described in ¶¶ 27–28 — and affirmatively ignored the Appellate Division's contrary determination in *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d

Dep't 2023). Petitioner brought the appellate ruling directly to Bowman's attention on the record. Bowman did not examine the decision, did not cite it, and did not reconcile her finding with a binding determination of a higher court. Instead, she treated the altered CMS entry as the operative record of the case — relying on an internal database classification over a published appellate holding.

41. Petitioner immediately corrected the record, citing the Appellate Division's ruling and the San Francisco jury verdict. None of these statements were rebutted. Bowman responded: "I don't have authority to make determination on ancillary issues . . . it's not before me." When Petitioner identified the record alteration, Bowman acknowledged the appellate criticism but stated: "But another order hasn't been issued . . . the prevailing order, the law of this case, grants Ms. Walsh custody."

42. Bowman dismissed the modification petition (Motion #1, Feb. 3, 2026) despite the 67% income decline, finding that Petitioner "failed to meet his burden" without identifying what that burden requires. Bowman imputed income to Petitioner in excess of his documented earnings despite being provided his 2025 W-2, his federal tax return (Form 1040), and sworn testimony — rejecting actual tax records in favor of Walsh's unsubstantiated accusations of hidden wealth, including escalating claims of "\$18 million" in stock, concealed cryptocurrency, and secret real property, offered without a single piece of supporting evidence.

42A. Walsh submitted no financial disclosure to the court. Bowman acknowledged this on the record. Yet Bowman failed to impute any income to Walsh despite Petitioner presenting evidence that Walsh earns approximately \$400,000 per year. Walsh was not required to account for her resources. Bowman imposed no consequence for Walsh's total non-compliance with financial disclosure obligations while simultaneously rejecting Petitioner's documented, filed evidence. The asymmetry is dispositive: one party provided tax records and was disbelieved; the other provided nothing and was accommodated.

43. On March 12, 2026, Bowman dismissed Petitioner's Notice of Related Motion (Motion #2) as "procedurally defective" under CPLR § 2214, without guidance as to what form would be acceptable. Both orders were mailed on March 19, 2026.

M. The Asymmetric Treatment

44. The record reveals a pattern of asymmetric judicial treatment spanning the entire proceeding:

(a) Respondent Schauer entered two defaults against Russell — November 5, 2021 (speech restriction) and January 5, 2022 (permanent custody) — producing permanent adverse orders, while Walsh's two documented defaults on Russell's applications before Judge Humphrey were never addressed by any judge, including Schauer;

(b) Schauer demanded Russell's in-person appearance without providing any protective measures, despite the California EPO identifying Russell as a domestic violence victim and Walsh as the perpetrator;

(c) Three predecessor judges each failed to rule when Walsh defaulted or failed to appear — and Schauer continued the pattern, inheriting Walsh's unresolved defaults without action while entering two defaults against Russell within a three-month period;

(d) Respondent Bowman imputed income to Russell above his documented W-2 and tax return figures while refusing to impute any income to Walsh despite evidence she earns approximately \$400,000 per year; imposed no consequence on Walsh for total failure to provide financial disclosure; credited Walsh's unsupported accusations of hidden wealth while rejecting Russell's filed tax records; affirmatively ignored a binding appellate determination that was cited to her on the record; and accommodated Walsh's repeated disruptions while sidelining Russell's citations to binding appellate authority.

N. The Withdrawal and Current Posture

45. On March 23, 2026, Petitioner withdrew the Motion to Vacate without prejudice (NYSCEF V-07641-18, Doc. #149) because the conditions imposed by Respondent Schauer — personal service on an ACP-enrolled party, a 10-day deadline, and silence in response to clarification — made the proceeding impossible to prosecute.

46. On March 23, 2026, Petitioner filed an Objection to Support Order pursuant to FCA § 439(e) (NYSCEF F-08146-18/25F, Doc. #39), challenging Bowman's dismissal orders.

47. As of the date of this petition, the assigned judge on the custody case (V-07641-18) is listed on NYSCEF as "Not Assigned." The April 16, 2026 hearing date set by Respondent Schauer remains on the calendar — for a motion that has been withdrawn — before a judge who is listed as unassigned.

FIRST CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Converting Vacatur to Contested Custody Hearing

48. Petitioner repeats and realleges paragraphs 1 through 47.

49. Respondent Schauer exceeded her jurisdiction by converting a Motion to Vacate — which sought ministerial compliance with the Appellate Division's mandate — into a contested custody hearing through handwritten modifications to the Order to Show Cause. The modifications struck the proposed service method, imposed personal service with a 10-day deadline, and set a hearing date that created the conditions for appointment of attorneys for Walsh and the child.

50. The Motion to Vacate sought relief under CPLR §§ 5015(a)(3) and (a)(4). The Appellate Division had already determined that the orders were not entered on default. The court's obligation was to comply with the mandate, not to initiate de novo custody litigation. *Matter of Holtzman v. Goldman*, 71 N.Y.2d 564 (1988) (prohibition lies where a court "acts or threatens to act . . . in excess of its authorized powers"); *Matter of Pirro v. Angiolillo*, 89 N.Y.2d 351 (1996) (prohibition granted where judge modified order beyond statutory authority). A court exceeds its jurisdiction when it converts a proceeding from what is requested into something fundamentally different through unauthorized procedural modifications. *Glassman v. ProHealth Ambulatory Surgery Ctr.*, 96 A.D.3d 799 (2d Dep't 2012) (trial court exceeds jurisdiction by expanding scope beyond appellate remand).

SECOND CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Imposing Impossible Service Conditions

51. Petitioner repeats and realleges paragraphs 1 through 50.

52. Respondent Schauer imposed a personal service requirement on a party whose opposing party is enrolled in the Address Confidentiality Program, whose address is confidential by operation of law, and who had previously refused service and characterized it as harassment.

53. Five weeks earlier, the support court had accepted mail service for Walsh in the same family proceeding. Under NY Executive Law § 108, the Address Confidentiality Program designates the Secretary of State as statutory agent for service of process upon ACP participants — a mechanism specifically designed to enable valid service without disclosing the participant's actual address. Imposing a personal service requirement that bypasses this statutory mechanism — when a viable alternative was accepted by both the court and the opposing party in the same family proceeding — is either designed to prevent compliance or indifferent to whether compliance is possible. Either way, it exceeds the court's authority. Pro se filings must be "liberally construe[d]" and courts must "afford the petitioner the benefit of every favorable inference." *Matter of Abigail Y. v. Jerry Z.*, 200 A.D.3d 1512 (3d Dep't 2021). Imposing impossibly strict conditions on a pro se litigant while accommodating the represented party is inconsistent with this obligation.

THIRD CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Refusal to Clarify Service Conditions

54. Petitioner repeats and realleges paragraphs 1 through 53.

55. Petitioner's March 10, 2026 letter asked three specific questions about compliance with the service conditions. The court's complete silence left the conditions ambiguous and unresolvable, forcing Petitioner to withdraw the Motion to Vacate without prejudice. A court that imposes conditions has an obligation to clarify those conditions when a pro se party raises reasonable questions about compliance. The refusal to respond, combined with the impossible conditions, effectively denied Petitioner access to the court.

FOURTH CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Irreconcilable Procedural Record and Continued Enforcement

56. Petitioner repeats and realleges paragraphs 1 through 55.

57. The Appellate Division held that the February 2, 2022 order was "not entered upon the father's default, inasmuch as his attorney appeared on his behalf at the January 5, 2022, hearing." *Matter of Walsh v. Russell*, 214 A.D.3d 890, 891 (2d Dep't 2023). The Court modified the blanket deletion provision and otherwise affirmed the order insofar as appealed from. This holding produced an irreconcilable four-way characterization of the same proceeding:

(a) The signed instrument — "ORDER ON DEFAULT." (b) Walsh and the Attorney for the Child — argued "on default" before the Appellate Division. (c) The Appellate Division — "not on default." (d) The court management system — reclassified to "after hearing" without judicial authorization.

No two of these characterizations are consistent. The order that Respondent Schauer and Respondent Bowman continue to enforce rests on a procedural foundation that the court's own records cannot coherently describe.

58. Respondent Schauer took no action to reconcile the Appellate Division's finding with the court's own records for approximately thirty-five months, from March 2023 until forced by Petitioner's Motion to Vacate in February 2026. A lower court is bound by the law of the case as established by a higher court. *People v. Evans*, 94 N.Y.2d 499 (2000). Where the Appellate Division has expressly found that an order was "not entered upon default," but the court's signed instrument says "ORDER ON DEFAULT" and the CMS has been retroactively altered to say "after hearing," the continued enforcement of that order — without resolving the contradiction — is an act in excess of jurisdiction. The court is enforcing orders whose procedural legitimacy it cannot itself articulate. *Glassman v. ProHealth*, 96 A.D.3d 799 (2d Dep't 2012) (trial court exceeds jurisdiction by expanding scope beyond appellate remand).

FIFTH CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Unauthorized Reclassification of Judicial Records

59. Petitioner repeats and realleges paragraphs 1 through 58.

60. Under Respondent Schauer's authority as presiding judge, the court management system was altered to reclassify the proceeding from "on default" to "after hearing" — a characterization that contradicts the court's own signed instrument, contradicts Schauer's own statements on the record, contradicts the positions taken by both adversaries before the Appellate Division, and contradicts the Appellate Division's binding determination. No judicial order authorized this change. No party was notified.

61. This reclassification is not a clerical correction. A nunc pro tunc correction is limited to "clerical errors" — mistakes in recording what the court decided. It cannot be used to correct judicial or substantive errors, or to retroactively create a procedural characterization that never existed. Changing "on default" to "after hearing" is a substantive alteration of the procedural history of the case — one that was subsequently relied upon by Respondent Bowman to enforce support obligations. The unauthorized alteration of court records constitutes potential violations of NY Penal Law §§ 175.20 and 175.25 (tampering with public records). It constitutes the retroactive fabrication of a false procedural history under the authority of the presiding judge.

SIXTH CAUSE OF ACTION (PROHIBITION — SCHAUER)

Excess of Jurisdiction: Asymmetric Treatment, Failure to Protect, Ex Parte Coordination, and Failure to Conduct Mandatory DV Inquiry

62. Petitioner repeats and realleges paragraphs 1 through 61.

63. Respondent Schauer's conduct reveals a pattern of acts in excess of jurisdiction extending beyond the recent OSC modifications:

(a) Asymmetric defaults. Walsh defaulted twice on Petitioner's applications before Judge Humphrey — a fact documented contemporaneously by Petitioner's counsel (ExOO_06, July 29, 2021). Humphrey recused without ruling on those defaults. Schauer inherited the unresolved Walsh defaults and never addressed them. Instead, on November 5, 2021, Schauer entered a speech restriction order against Russell "on default" — while his counsel was present in the courtroom — and extended identical restrictions to his mother, Linda Russell, through a companion "Order on Consent" (ExR_02). On January 5, 2022, Schauer entered permanent custody and protection orders against Russell on default while denying electronic appearance during COVID-era travel disruptions. Russell received two defaults producing permanent adverse orders. Walsh received none despite two documented non-appearances on Russell's applications. The court's enforcement mechanism ran in one direction only.

(b) Failure to protect. Schauer demanded Russell's in-person appearance without providing any protective measures, despite the California Emergency Protective Order identifying Russell as a domestic violence victim and Walsh as the perpetrator. The court that was obligated to evaluate domestic violence under DRL § 240 treated the documented victim as the threat.

(c) DRL § 240 failure. DRL § 240(1)(a) mandates: "the court shall consider the effect of domestic violence upon the best interests of the child" and must "state on the record how such findings, facts and circumstances factored into the determination." The statute is mandatory. *Matter of Wissink v. Wissink*, 301 A.D.2d 36 (2d Dep't 2002) (failure to consider domestic violence is reversible error requiring remand); *Matter of Esposito v. Esposito*, 175 A.D.3d 693 (2d Dep't 2019). A California jury unanimously found Walsh liable for domestic violence — proof by preponderance that triggers the statutory mandate. The verdict was supported by six independent evidentiary anchors. No consideration of Walsh's adjudicated domestic violence appears anywhere in the record. Respondent Schauer was informed of the California proceedings and the jury verdict. The mandatory inquiry was never conducted.

(d) Ex parte coordination. 22 NYCRR § 100.3(B)(6) prohibits a judge from initiating, permitting, or considering ex parte communications concerning a pending or impending proceeding. Upon receiving Petitioner's December 2025 filing, Respondent Schauer's first act was to reach for Genovese — the attorney who had initiated the unconstitutional

speech restriction — through an ex parte channel routed through Court Attorney D'Ambrosio. Neither communication was served on Petitioner. *Coleman v. Coleman*, 61 A.D.2d 757 (1st Dep't 1978) (reversal for improper ex parte communications affecting substantive orders). This pattern of ex parte judicial-AFC communication outside the adversarial process is itself an act in excess of jurisdiction. Section 7.2 of the Rules of the Chief Judge explicitly prohibits ex parte discussions between judges and attorneys for the child regarding case positions.

(e) Griffin evaluation. Schauer acknowledged in August 2021 that the court's forensic evaluator was "discredited," yet never struck the evaluation or relieved Russell of compliance conditions based on the discredited evaluator's directives. The evaluation remained shielded by a protective order preventing Russell from reading it.

(f) Whistleblower retaliation context. Petitioner sent a formal whistleblower communication to court administrator Eckel on August 7, 2021. Approximately ninety days later, the court conducted the January 5, 2022 inquest that produced the challenged default orders, the five-year order of protection, and the unconstitutional speech restriction. Three prior judges recused from this matter. Walsh's appellate counsel, Christopher Weddle, has been appointed Support Magistrate in the same courthouse. The Attorney for the Child who initiated the gag order has joined the Unified Court System. The pattern of escalating adverse action against a pro se litigant who is simultaneously a public whistleblower against the court system — in a case from which three judges have already recused — is relevant to whether the presiding judge's acts reflect the exercise of lawful judicial authority or something else.

64. Taken together, these acts demonstrate that Respondent Schauer has proceeded and is proceeding in excess of jurisdiction in a manner that is not limited to any single challenged act but reflects a systemic failure to exercise judicial authority within lawful bounds.

SEVENTH CAUSE OF ACTION (CERTIORARI — BOWMAN)

Arbitrary and Capricious: Reliance on Contradictory Record

65. Petitioner repeats and realleges paragraphs 1 through 64.

66. The record contains four mutually exclusive characterizations of the same custody order:

(a) The original order (Jan. 5, 2022 Inquest Transcript): entered "on default" — Judge Schauer stated: "an order on default . . . a final order" (Inquest Tr. 92);

(b) Walsh's own appellate counsel: affirmatively argued the order was entered on Russell's default (ExWeddle);

(c) The Appellate Division (214 A.D.3d 890): expressly rejected both characterizations, holding no default occurred;

(d) Respondent Bowman (Feb. 3, 2026): stated "custody was granted after hearing" — a characterization that appears nowhere in the original record and contradicts every prior account.

67. These characterizations are mutually exclusive. Respondent Bowman adopted the fourth — the altered CMS classification — despite being informed on the record of the Appellate Division's contrary determination. Petitioner cited *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep't 2023), directly to Bowman during the hearing. Bowman acknowledged the appellate criticism but stated the "prevailing order" controlled, treating an internal database entry as superior to a published appellate decision. Walsh is judicially estopped from claiming a valid hearing occurred, having affirmatively argued before the Appellate Division that the order was entered on default. *D&L Holdings, LLC v. RCG Goldman Co.*, 287 A.D.2d 65 (1st Dep't 2001) (judicial estoppel prevents parties from taking contradictory positions across proceedings). A determination that affirmatively ignores a binding higher-court ruling — and instead rests on a disputed, unresolved, and internally contradictory predicate whose records have been retroactively altered without judicial authorization — is arbitrary and capricious as a matter of law. *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974) (arbitrary action is "without sound basis in reason and without regard to the facts").

EIGHTH CAUSE OF ACTION (CERTIORARI — BOWMAN)

Arbitrary and Capricious: Reliance on Unverified Party Representation

68. Petitioner repeats and realleges paragraphs 1 through 67.

69. Walsh read the CMS characterization from her computer during the hearing. Respondent Bowman adopted that characterization without independent verification against the actual court file, the signed instrument, or the Appellate Division decision. Reliance on one party's reading of a computer screen — when a binding appellate decision on the same issue exists — is arbitrary and capricious.

NINTH CAUSE OF ACTION (CERTIORARI — BOWMAN)

Contrary to the Record and Error of Law: Financial Findings and Statutory Standard

70. Petitioner repeats and realleges paragraphs 1 through 69.

71. Respondent Bowman found that Russell "failed to meet his burden" of demonstrating a substantial change in circumstances, despite:

(a) W-2 earnings documentation submitted at the hearing; (b) A complete 2025 federal income tax return (Form 1040) filed via NYSCEF (Doc. No. 32), showing total income of \$115,184; (c) Sworn testimony as to financial condition.

72. FCA § 451(3)(b)(i) and (ii) provide for modification where three years have passed or where income has changed by 15% or more. Russell's income changed from approximately \$350,000+ to \$115,184 — a reduction of more than 67%. Bowman did not apply this statutory standard and did not identify what additional evidence was required. *Matter of Merritt v. Merritt*, 160 A.D.3d 870 (2d Dep't 2018) (reversing magistrate who failed to recognize substantial change in circumstances under FCA § 451); *Matter of Brescia v. Fitts*, 56 N.Y.2d 132 (1982) (changed circumstances standard is mandatory and cannot be avoided).

73. Bowman simultaneously found that Walsh "did not submit financial disclosure to the court" and that Walsh "is precluded from offering evidence or testimony regarding her resources" — yet credited Walsh's unsupported accusations about Petitioner's alleged hidden wealth while dismissing Petitioner's documented tax records. This is the paradigm of asymmetric treatment that the Second Department reversed in *Matter of Hezi v. Hezi*, 130 A.D.3d 1031 (2d Dep't 2016) (error to credit one party's unverified financial claims while denying the other opportunity to rebut). Bowman imputed income to Russell above his documented W-2 and tax return figures, while failing to impute any income to Walsh despite evidence presented at the hearing that Walsh earns approximately \$400,000 per year. Under DRL § 240(1-b)(b)(5)(iv) and the Child Support Standards Act, where a party fails to provide financial disclosure, the court may impute income based on available evidence. Bowman had evidence of Walsh's income and chose not to use it. *Matter of Bast v. Rossoff*, 92 N.Y.2d 723 (1998) (CSSA methodology is mandatory; magistrates cannot deviate from statutory formula). A determination that imputes income to the party who provided tax records while refusing to impute income to the party who provided nothing — and who earns substantially more — is contrary to the weight of the evidence, affected by errors of law, and arbitrary and capricious. *Matter of Amos-Richburg v. Richburg*, 94 A.D.3d 1112 (2d Dep't 2012) (magistrate exceeded authority in modifying support obligations without basis).

TENTH CAUSE OF ACTION (CERTIORARI — BOWMAN)

Arbitrary and Capricious: Enforcement Based on Internally Contradictory Predicate Order

74. Petitioner repeats and realleges paragraphs 1 through 73.

75. Respondent Bowman enforced a support obligation based on a custody order whose procedural status is internally contradictory — with irreconcilable characterizations across the signed instrument, the Appellate Division's decision, and the altered CMS classification. Bowman acknowledged the conflict on the record but did not resolve it, instead enforcing the order as currently classified in the system.

76. A support determination predicated on a custody order whose validity is unresolved — and whose records have been retroactively altered without judicial authorization — is affected by an error of law and exceeds the lawful authority of the Support Magistrate.

ELEVENTH CAUSE OF ACTION (COMBINED)

Violation of Due Process — Denial of Forum

77. Petitioner repeats and realleges paragraphs 1 through 76.

78. The combined effect of Respondents' acts denies Petitioner any forum in which to challenge the enforcement framework:

(a) Respondent Schauer's conditions made the Motion to Vacate impossible to prosecute, forcing withdrawal; (b) Respondent Bowman dismissed both the modification petition and the notice of related motion, eliminating every available mechanism for challenge within Family Court; (c) Support enforcement continues based on a predicate order whose validity remains unresolved; (d) Petitioner is simultaneously subject to enforcement, challenging the validity of the predicate order, and unable to obtain a stay — a procedural configuration that denies any meaningful opportunity to be heard.

79. This constitutes a violation of due process under the Fourteenth Amendment.

TWELFTH CAUSE OF ACTION (COMBINED)

Preservation of Federal Claims — 42 U.S.C. § 1983

80. Petitioner repeats and realleges paragraphs 1 through 79.

81. The facts set forth herein constitute continuing deprivation of liberty and property interests under color of state law in violation of the Due Process and Equal Protection Clauses of the Fourteenth Amendment, actionable under 42 U.S.C. § 1983. Specifically:

(a) State courts are relying on custody records that are materially disputed and arguably falsified; (b) Two judicial officers, informed of the Appellate Division's determination, have declined to correct the record; (c) The court system retroactively altered official records to insulate void orders from challenge; (d) Petitioner is denied a forum to correct the predicate defect, yet suffers ongoing consequences; (e) Ex parte communications between the presiding judge and former case participants occurred without notice; (f) Walsh's appellate counsel has been appointed as a judicial officer in the same courthouse; (g) Petitioner is a whistleblower against the Westchester County court system, and the pattern of escalating adverse action is temporally correlated with Petitioner's whistleblower communications and public documentary work; (h) The harm is ongoing and continuing.

82. Petitioner preserves these claims for assertion in the United States District Court for the Southern District of New York.

RELIEF REQUESTED

WHEREFORE, Petitioner Stephen Grant Russell respectfully requests that this Court:

As to Respondent Schauer (Prohibition):

- 1. Prohibit** Respondent Schauer from taking any further action in the custody proceeding (V-07641-18) until the irreconcilable procedural record has been resolved and the status of the predicate custody orders has been determined;
- 2. Annul** the handwritten modifications to the Order to Show Cause dated March 10, 2026, as acts in excess of jurisdiction;
- 3. Direct** Respondent Schauer, or her successor, to reconcile the court's records with the Appellate Division's published finding in *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep't 2023), that the February 2, 2022 order was not entered upon default, and to resolve the irreconcilable characterization of the predicate custody orders before taking any further enforcement action;
- 4. Direct** that the court's internal records be corrected to accurately reflect the procedural history of the custody order, consistent with the signed instrument and the Appellate Division's holding;
- 5. Direct** that the mandatory DRL § 240(1)(a) domestic violence inquiry be conducted before any further custody or visitation determination;

As to Respondent Bowman (Certiorari):

- 6. Vacate** the Order of Dismissal dated February 3, 2026 (Motion #1) and the Order of Dismissal dated March 12, 2026 (Motion #2) as arbitrary and capricious, contrary to the record, affected by errors of law, made in excess of jurisdiction, and in violation of lawful procedure;
- 7. Remand** the support modification petition for a proper hearing with application of the correct statutory standard under FCA § 451(3);

As to All Respondents:

- 8. Stay** all support enforcement pending resolution of the predicate custody order's status;
- 9. Declare** that the retroactive reclassification of the custody proceeding from "on default" to "after hearing," without judicial order or notice, was unauthorized and void;
- 10. Note** Petitioner's preservation of federal constitutional claims under 42 U.S.C. § 1983;
- 11. Award** Petitioner costs, disbursements, and such other relief as this Court deems just and proper.

Respectfully submitted,

STEPHEN GRANT RUSSELL Petitioner, Pro Se

DATED: April ___, 2026

1117 State Street, STE 77 Santa Barbara, CA 93101 (415) 999-3944 sg.russ@aol.com

VERIFICATION

STATE OF CALIFORNIA)) ss.: COUNTY OF SANTA BARBARA)

I, Stephen Grant Russell, affirm under the penalties of perjury pursuant to CPLR § 2106 that the foregoing petition is true and correct based upon personal knowledge, except as to those matters stated upon information and belief, and as to those matters, I believe them to be true.

Dated: April ___, 2026 Santa Barbara, California

_____ STEPHEN GRANT RUSSELL

EVIDENTIARY APPENDIX

The following evidence is referenced throughout this Verified Petition. Items designated with NYSCEF Doc. numbers are part of the Family Court record (File No. 154703). Items designated with exhibit codes are part of the record in the related custody and support proceedings and/or the California civil action. All materials were presented to or available to the Respondent courts at or before the relevant proceedings.

A. APPELLATE DECISION

- **ExR_04:** *Matter of Walsh v. Russell*, 214 A.D.3d 890 (2d Dep't 2023) — Appellate Division decision modifying speech restriction and affirming order insofar as appealed from; finding order "not entered upon default"

B. THE PREDICATE ORDERS AND RECORD

- **ExR_02:** ORDER ON DEFAULT — December 3, 2021 signed instrument
- **Inquest Transcript:** Certified transcript, January 5, 2022 proceeding before Hon. Schauer
- **ExSS_03:** Documentation of CMS reclassification from "on default" to "after hearing"

C. SCHAUER'S OSC MODIFICATIONS AND CORRESPONDENCE

- **OSC_Court_Response_Signed_2026-03-10.pdf:** Signed Order to Show Cause with handwritten modifications
- **Service_Clarification_Letter_2026-03-10.pdf:** Petitioner's three questions to the court (unanswered)
- **Withdrawal Letter (March 23, 2026):** Withdrawal of Motion to Vacate without prejudice

D. EX PARTE COMMUNICATIONS

- **Genovese Resignation Letter (Jan. 9, 2026):** Communication routed through D'Ambrosio to Schauer, not served on Petitioner

E. BOWMAN HEARING AND ORDERS

- **ExTR_20:** February 3, 2026 hearing documentation — Bowman's statements on the record
- **Order of Dismissal (Motion #1, Feb. 3, 2026):** Denial of modification petition
- **Order of Dismissal (Motion #2, Mar. 12, 2026):** Dismissal of Notice of Related Motion
- **NYSCEF Doc. No. 32:** Tax return filing (Form 1040, income \$115,184)

F. CALIFORNIA JURY VERDICT AND DOMESTIC VIOLENCE EVIDENCE

- **ExG_01:** San Francisco jury verdict — Intentional Battery, Domestic Violence, IIED with Malice/Oppression/Fraud
- **ExG_05:** Appellate affirmance of California judgment
- **ExEPO_01:** California Emergency Protective Order (Walsh as restrained party)
- **ExM_01:** Walsh's signed recantation of gun allegation to Chappaqua Police (Nov. 23, 2020)
- **ExTR_19a:** Walsh sworn testimony — Seroquel/wine admission
- **ExPP_04:** Walsh text to psychiatrist — "I put Seroquel in his wine"
- **ExI_02:** LabCorp toxicology — Lithium at ~6x upper reference limit
- **ExOO_49:** Nanny eyewitness testimony — substances in drinks
- **ExOO_45:** Walsh internet search — "How Much Is a Lethal Dose of Seroquel?"
- **ExW_01:** Walsh's sister — "it did happen without his consent"

G. FORENSIC EVALUATOR FRAUD

- **ExS_03:** OASAS Stipulation documenting Griffin's credential surrender
- **ExTR_01:** August 27, 2021 hearing transcript — Schauer acknowledges Griffin, dismisses predecessor failures
- **ExSS_08:** Griffin evaluation as gating condition — AFC Jackman emails

H. PATTERN EVIDENCE

- **ExWeddle:** Walsh's appellate counsel brief — arguing order entered "on default"
- **ExGenovese:** Attorney for the Child appellate brief — characterizing order as "on default"
- **ExL_01:** November 7, 2018 Order conditioning parental access on surrender of criminal rights

- **ExTR_05a:** Judge Humphrey's recusal after Walsh's defaults
- **ExOO_06:** DiFabio/Russell email exchange (July 29, 2021) — documenting Walsh's two defaults on Russell's applications before Humphrey
- **ExTR_08:** Gordon-Oliver jurisdiction hearing — UCCJEA communication (Sept. 11, 2018)
- **ExA_01:** "Works for us" email — Walsh Sr. coordination of child removal
- **ExQQ_01c:** Walsh Sr. deposition — "less than 100 percent genuine" admission
- **ExTR_19e:** Walsh trial testimony — "I lied . . . I had no intention to come back to California"
- **ExOO_41:** Walsh custody petition — fabricated gun allegation basis (July 12, 2018)
- **ExSS_07:** Walsh texts admitting gun claim was fabricated
- **ExGagOrder:** Speech restriction order — modified by Appellate Division (blanket deletion narrowed)
- **ExOO_13:** Russell "Whistleblower" email to court administrator Eckel (Aug. 7, 2021)
- **ExOO_04:** Russell response to Weddle — retroactive TOP extension